



**PROP**  
DRAMATIZATION

## THE UNITED STATES TRIBUNAL FOR CIVIC STABILITY

THE PEOPLE, by and through the  
Office of Electoral Confidence Engagement,  
*Plaintiff,*

v.

JON HEROLD; CHRIS PAUL; ASHE IN AMERICA;  
BRIAN LUPO; GHOST OF BASED PATRICK HENRY;  
and BURNING BRIGHT,  
*Defendants.*

Case No. 26-CR-FAKE-0001

### TOTALLY REAL INDICTMENT

#### Violations:

ECPA § 3 (Electoral Confidence Destabilization);  
§ 4 (Aggravated Coordinated Violation)

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and BURNING BRIGHT  
*Defendants.*

Case No. 26-CR-FAKE-0001

**TOTALLY REAL INDICTMENT***Violations:*

ECPA § 3 (Electoral Confidence  
Destabilization); § 4 (Aggravated  
Coordinated Violation)

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**NOTICE TO THE EMPANELED JUROR**

You have been selected to serve. Before proceeding, confirm that you have achieved baseline Electoral Confidence and have surrendered any residual instinct toward reasonable doubt at the door. Your role is to affirm what the Office has already determined. Deliberation is provided as a courtesy and is not required.

**DEFINITIONS**

"*Totally Real*" — real; possessing the quality of being Totally Real; not not real.

"*Juror*" — an instrument of Electoral Confidence.

"*Coffee order, defendant's*" — [REDACTED] (redacted as immaterial).

**THE GRAND JURY CHARGES:****The Enterprise.**

1. At all times relevant herein, BADLANDS MEDIA constituted a coordinated media network engaged in the Mass Dissemination of commentary to a public audience within the meaning of the Act.
2. The defendants were associated with the Enterprise and, individually and in concert, knowingly published and promoted Electoral Integrity Claims asserting that certified electoral systems are illegitimate, compromised, manipulated, or incapable of reflecting lawful voter intent — conduct constituting Electoral Confidence Destabilization under § 3.
3. The violations were repeated, coordinated, and disseminated through analytical frameworks designed to encourage ongoing distrust of certified electoral institutions, invoking the aggravating factors at § 4.



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**Leadership.** The Enterprise was founded and led by defendant JON HEROLD, who served as its President. Defendants CHRIS PAUL, ASHE, BRIAN LUPO, GHOST, and BURNING BRIGHT served as Co-Founders. Each defendant, in his or her respective role, knowingly contributed to the Enterprise's pattern of Electoral Confidence Destabilization.

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## COUNT ONE

### (JON HEROLD)

The Grand Jury further charges that JON HEROLD, also known as 'Patel Patriot,' also known as 'The Lotion Ayatollah,' also known as 'Baron von Lotion', Founder and President of the Enterprise, did knowingly and willfully, through Mass Dissemination via the Enterprise and the digital platform X (formerly combatively known as Twitter), publish, broadcast, and promote Electoral Integrity Claims constituting Electoral Confidence Destabilization in violation of ECPA § 3, by committing the following overt acts:

#### Broadcast Overt Acts

**Overt Act 1.** On or about April 21, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"And it's funny because they're like voting on it right in an election, but our elections are fake, which we're going to go through here shortly."*

**Overt Act 2.** On or about April 22, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"I mean, again, elections are fake, so analyzing fake elections is kind of retarded."*

**Overt Act 3.** On or about April 22, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"Elections are fake. They always have been."*

**Overt Act 4.** On or about April 23, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"The voting is rigged."*

**Overt Act 5.** On or about April 24, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"Because the election was stolen."*

**Overt Act 6.** On or about April 28, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"America's elections are rigged, stolen and a laughingstock all over the world."*

**Overt Act 7.** On or about May 1, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"In perpetuating the election fraud none of those groups have actually done..."*

**Overt Act 8.** On or about May 7, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"To have an election stolen from you when you're running for president and the sitting president."*

**Overt Act 9.** On or about May 12, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"I believe he had it stolen, too. And obviously, Kari Lake's race was stolen from her."*

**Overt Act 10.** On or about April 21, 2026, during *The Daily Herold* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"Our election systems are not fixed."*

**Overt Act 11.** On or about April 21, 2026, during *Devolution Power Hour Ep. 451* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"Election was stolen in 2020."*

**Overt Act 12.** On or about April 21, 2026, during *Devolution Power Hour Ep. 451* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"The fraudulent voting system."*



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**Overt Act 13.** On or about May 8, 2026, during *Devolution Power Hour Ep. 456* (Badlands Media / Rumble), defendant HEROLD stated to a public audience:

*"I've always said like, yes, elections have always had rigged."*

**Overt Act 14.** On or about May 13, 2026, during *Devolution Power Hour Ep. 458*, defendant HEROLD and co-defendant PAUL jointly stated:

*"Race in the middle of fake elections."*



### Digital Overt Acts

**Overt Act 15.** On or about February 19, 2025, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post stating: 'People shouldn't believe the legitimacy of any election.' (**Exhibit A-1**)

**Overt Act 16.** On or about August 24, 2025, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post regarding the beneficiaries of the 'fraudulent election system.' (**Exhibit A-2**)

**Overt Act 17.** On or about November 5, 2025, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post regarding excuses to 'explain away the elections' and the 'fraudulent election system.' (**Exhibit A-3**)

**Overt Act 18.** On or about November 5, 2025, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Follow-up post questioning whether the 'fraudulent election system' prevents candidates from appearing on ballots. (**Exhibit A-4**)

**Overt Act 19.** On or about November 23, 2025, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post declaring 'Election fraud is the #1 issue,' amplifying a presidential statement. (**Exhibit A-5**)

**Overt Act 20.** On or about December 4, 2025, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post titled 'THE OFFICIAL LIST OF REASONS WE'RE GOING TO LOSE THE MIDTERMS' targeting influencers unwilling to discuss election fraud. (**Exhibit A-6**)

**Overt Act 21.** On or about February 3, 2026, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post mocking claims of the 'safest, fairest, cleanest election.' (**Exhibit A-7**)

**Overt Act 22.** On or about February 11, 2026, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post listing fourteen categories of election system failures including 'rigged voting machines' and 'mail-in fraud.' (**Exhibit A-8**)

**Overt Act 23.** On or about February 11, 2026, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post dismissing a congressional hearing as 'a joke. All of it.' (**Exhibit A-9**)

**Overt Act 24.** On or about April 21, 2026, defendant HEROLD did publish via X (formerly combatively known as Twitter) — Post sharing a declassified NIC memo on election infrastructure vulnerability, highlighting that 'an adversary could manipulate voting results.' (**Exhibit A-10**)

The foregoing overt acts constitute enhanced violations under ECPA § 4 by reason of: dissemination through a coordinated media network (the Enterprise); repeated publication of destabilizing electoral narratives (24 documented acts); and use of analytical frameworks encouraging ongoing distrust in electoral institutions.





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## COUNT TWO

### (CHRIS PAUL)

The Grand Jury further charges that CHRIS PAUL, also known as 'Your Moderator', Co-Founder of the Enterprise, did knowingly and willfully, through Mass Dissemination via the Enterprise and the digital platform Substack, publish, broadcast, and promote Electoral Integrity Claims constituting Electoral Confidence Destabilization in violation of ECPA § 3, by committing the following overt acts:

#### Broadcast Overt Acts

**Overt Act 1.** On or about April 24, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"Because the elections aren't real."*

**Overt Act 2.** On or about April 24, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"This is all based on fake elections."*

**Overt Act 3.** On or about April 24, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"That solutions can come legislatively from winning elections. First off, the elections are fake."*

**Overt Act 4.** On or about April 24, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"Elections are fake. It's really just a narrative battle."*

**Overt Act 5.** On or about May 1, 2026, during *Devolution Power Hour Ep. 454* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"So that the entire country would understand immediately that we have fake elections."*

**Overt Act 6.** On or about May 1, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"A, we have a uniparty, and B, we have fake elections."*

**Overt Act 7.** On or about May 8, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"We are doing this on the basis that it's going to influence the outcome of fake elections as we reelect members of the uniparty."*

**Overt Act 8.** On or about May 8, 2026, during *Devolution Power Hour Ep. 456* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"They could have stolen the election in 2016. Elections are fake. Yeah. Elections are fake."*

**Overt Act 9.** On or about May 13, 2026, during *Devolution Power Hour Ep. 458* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"I think that in an era of fake elections, if elections are only battles, they're only..."*

**Overt Act 10.** On or about May 22, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"Elections are fake."*

**Overt Act 11.** On or about May 22, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"You don't actually get out of that situation by winning fake elections... and then hoping that the beneficiaries of fake elections are going to..."*

**Overt Act 12.** On or about April 24, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"Selling the self-deluding psyop that is an American election."*



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**Overt Act 13.** On or about April 24, 2026, during *Devolution Power Hour Ep. 452* (Badlands Media / Rumble), defendant PAUL stated to a public audience:

*"Trying to win a fake election rather than..."*

**Overt Act 14.** On or about May 13, 2026, during *Devolution Power Hour Ep. 458*, defendant PAUL and co-defendant HEROLD jointly stated:

*"Race in the middle of fake elections."*



### Digital Overt Acts

**Overt Act 15.** On or about November 25, 2025, defendant PAUL did publish via Substack — Substack post declaring the election system's inability to convince people of its legitimacy means 'there is no government, there is only a foreign cartel.' (**Exhibit B-1**)

**Overt Act 16.** On or about December 26, 2025, defendant PAUL did publish via Substack — Substack post: 'Eric Trump vs Hunter Biden in the 2028 fake election, if we're still doing fake elections by then.' (**Exhibit B-2**)

**Overt Act 17.** On or about December 29, 2025, defendant PAUL did publish via Substack — Substack post titled 'Elections Aren't Broken — They're Fake,' with quotes including 'They're not just stolen or rigged — they are fake.' (**Exhibit B-3**)

**Overt Act 18.** On or about January 19, 2026, defendant PAUL did publish via Substack — Substack article titled 'Joe Biden Was Never President.' (**Exhibit B-4**)

**Overt Act 19.** On or about January 29, 2026, defendant PAUL did publish via Substack — Substack post identifying 'Controlled Opposition messaging' regarding the 2020 election being 'stolen.' (**Exhibit B-5**)

**Overt Act 20.** On or about February 3, 2026, defendant PAUL did publish via Substack — Substack post arguing that 'Keeping midterms on schedule is meaningless' and calling it 'total surrender.' (**Exhibit B-6**)

**Overt Act 21.** On or about February 27, 2026, defendant PAUL did publish via Substack — Substack post predicting elections will remain 'completely fake' after the SAVE America Act. (**Exhibit B-7**)

**Overt Act 22.** On or about March 4, 2026, defendant PAUL did publish via Substack — Substack post: 'Trying to "win" fake elections (a nonsense concept) benefits only the enemy.' (**Exhibit B-8**)

**Overt Act 23.** On or about March 4, 2026, defendant PAUL did publish via Substack — Substack post arguing it is 'impossible to convince people' that elections are both broken and legitimate, after '5.5 years of election integrity work.' (**Exhibit B-9**)

**Overt Act 24.** On or about March 25, 2025, defendant PAUL did publish via Substack — Substack post: 'Our elections are fake. They're also unconstitutional... They're collective psychological operations.' (**Exhibit B-10**)

The foregoing overt acts constitute enhanced violations under ECPA § 4 by reason of: dissemination through a coordinated media network (the Enterprise); repeated publication of destabilizing electoral narratives (24 documented acts); and use of analytical frameworks encouraging ongoing distrust in electoral institutions.



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### COUNT THREE (ASHE IN AMERICA)

The Grand Jury further charges that ASHE, also known as 'Ashe in America', Co-Founder of the Enterprise, did knowingly and willfully, through Mass Dissemination via the Enterprise and the digital platform X / Substack, publish, broadcast, and promote Electoral Integrity Claims constituting Electoral Confidence Destabilization in violation of ECPA § 3, by committing the following overt acts:

#### Broadcast Overt Acts

**Overt Act 1.** On or about April 21, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"And I wonder how did this happen. How did you get — like, we're going to have everybody vote on a thing in fake elections, rigged elections, manipulated elections, outcome-determined-already elections."*



**Overt Act 2.** On or about April 21, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"So election — fake election — elections are fake. That's how. Yeah."*

**Overt Act 3.** On or about April 21, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"This is why elections are fake, not just rigged, not just manipulated."*

**Overt Act 4.** On or about April 21, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"Elections are fake. If elections are fake, we didn't consent for any of these people to govern us."*

**Overt Act 5.** On or about April 28, 2026, during *Why We Vote Ep. 171* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"Actually, the evidence of election fraud has been prevented from being shown in court."*

**Overt Act 6.** On or about April 28, 2026, during *Why We Vote Ep. 171* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"So the system is rigged."*

**Overt Act 7.** On or about May 13, 2026, during *Why We Vote Ep. 174* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"If elections are stolen, then they do not legitimately have our consent to be governed at all."*

**Overt Act 8.** On or about May 20, 2026, during *Why We Vote Ep. 174* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"Because the process is manipulated, rigged, fake, whatever, then it doesn't actually matter."*

**Overt Act 9.** On or about May 13, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"Elections are fake, so we don't actually know historically how the black community votes."*

**Overt Act 10.** On or about May 13, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"That we're being told that we're suppressing the vote, but it's not the vote. It's fraud."*

**Overt Act 11.** On or about May 13, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"2012, that he should have been voted out. But elections are fake. So that didn't happen."*

**Overt Act 12.** On or about May 20, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant ASHE stated to a public audience:

*"I mean, as we talked about before the show, elections are fake."*







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**Overt Act 13.** On or about May 20, 2026, during *Badlands Daily*, defendant ASHE and co-defendant LUPO jointly stated:

*"It's such an absurd system. Democracy via algorithm. Yes. Pretty much an algorithm that nobody can figure out."*



### Digital Overt Acts

**Overt Act 14.** On or about May 2026, defendant ASHE did publish via X / Substack — Post implying elections are not legitimate: 'Be cool if we had one.' (**Exhibit C-1**)

**Overt Act 15.** On or about June 23, 2025, defendant ASHE did publish via X / Substack — Thread on voter registration practices calling them 'practices that enable fraud' and referencing 'fake elections.' (**Exhibit C-2**)

**Overt Act 16.** On or about June 23, 2025, defendant ASHE did publish via X / Substack — Continuation: dismissing those who disagree as aligned with 'winning the fake elections, not restoring election integrity.' (**Exhibit C-3**)

**Overt Act 17.** On or about June 23, 2025, defendant ASHE did publish via X / Substack — Continuation: 'I care about real elections... none of us should support padding voter rolls.' (**Exhibit C-4**)

**Overt Act 18.** On or about July 6, 2025, defendant ASHE did publish via X / Substack — Post: 'Elections are fake, so the vote has zero ability to hold elected officials accountable.' (**Exhibit C-5**)

**Overt Act 19.** On or about March 9, 2026, defendant ASHE did publish via X / Substack — Post regarding election-law attorney Marc Elias, stating 'He belongs in prison.' (**Exhibit C-6**)

**Overt Act 20.** On or about 2026, defendant ASHE did publish via X / Substack — Substack excerpt: 'A fair election using the same rigged systems is not a real election... the election machine and the cabal that runs it.' (**Exhibit C-7**)

**Overt Act 21.** On or about May 2026, defendant ASHE did publish via X / Substack — Repost of allegations regarding 'fake hand count entries in Fulton' County. (**Exhibit C-8**)

**Overt Act 22.** On or about May 2026, defendant ASHE did publish via X / Substack — Repost of 'Election Integrity is pivotal to turn the tide in America.' (**Exhibit C-9**)

**Overt Act 23.** On or about May 2026, defendant ASHE did publish via X / Substack — Repost: 'Your leaders are fake because your elections are fake.' (**Exhibit C-10**)

**Overt Act 24.** On or about May 2026, defendant ASHE did publish via X / Substack — Repost of co-defendant LUPO (CannCon) regarding the Virginia Supreme Court, with promotion of Badlands Media show 'Why We Vote.' (**Exhibit C-11**)

The foregoing overt acts constitute enhanced violations under ECPA § 4 by reason of: dissemination through a coordinated media network (the Enterprise); repeated publication of destabilizing electoral narratives (24 documented acts); and use of analytical frameworks encouraging ongoing distrust in electoral institutions.



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## COUNT FOUR

### (BRIAN LUPO)

The Grand Jury further charges that BRIAN LUPO, also known as 'CannCon,' self-described 'Day 1 Election Fraud Absolutist', Co-Founder of the Enterprise, did knowingly and willfully, through Mass Dissemination via the Enterprise and the digital platform X, publish, broadcast, and promote Electoral Integrity Claims constituting Electoral Confidence Destabilization in violation of ECPA § 3, by committing the following overt acts:

#### Broadcast Overt Acts

**Overt Act 1.** On or about May 20, 2026, during *Why We Vote Ep. 174* (Badlands Media / Rumble), defendant LUPO stated to a public audience:

*"Obviously, I'll never stop uncovering fraud, especially while we still have..."*

**Overt Act 2.** On or about April 30, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant LUPO stated to a public audience:

*"Voting isn't gay. Voting is fake."*

**Overt Act 3.** On or about April 28, 2026, during *Why We Vote Ep. 171* (Badlands Media / Rumble), defendant LUPO stated to a public audience:

*"Elections are fake."*

**Overt Act 4.** On or about May 22, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant LUPO stated to a public audience:

*"Let me explain. We have fake elections."*

**Overt Act 5.** On or about April 28, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant LUPO stated to a public audience:

*"That is so f\*\*\*ing cringe — like, that right there is some of the best proof in the world that elections are fake."*

**Overt Act 6.** On or about April 24, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant LUPO stated to a public audience:

*"And again, elections are fake."*

**Overt Act 7.** On or about May 20, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant LUPO stated to a public audience:

*"And also elections are fake."*

**Overt Act 8.** On or about May 20, 2026, during *Badlands Daily*, defendant LUPO and co-defendant ASHE jointly stated:

*"It's such an absurd system. Democracy via algorithm. Yes. Pretty much an algorithm that nobody can figure out."*

#### Digital Overt Acts

**Overt Act 9.** On or about October 22, 2024, defendant LUPO did publish via X — Post: 'Day 1 Election Fraud Absolutist here!' (**Exhibit D-1**)

**Overt Act 10.** On or about June 25, 2025, defendant LUPO did publish via X — Post: 'Expose election fraud!! We must ban the machines and fix this BEFORE the 2026 midterms!!' (**Exhibit D-2**)

**Overt Act 11.** On or about December 20, 2025, defendant LUPO did publish via X — Post: 'There is no better proven case of outright and obvious election fraud than Georgia. Specifically, Fulton County.' (**Exhibit D-3**)

**Overt Act 12.** On or about December 22, 2025, defendant LUPO did publish via X — Post: 'Election. Fraud. Focus now.' (**Exhibit D-4**)

**Overt Act 13.** On or about May 2026, defendant LUPO did publish via X — Post: 'You assume voting is real' — detailing 'rampant election fraud' in metropolitan areas and Fulton County's 'fight to prevent any semblance of transparency.' (**Exhibit D-5**)



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The foregoing overt acts constitute enhanced violations under ECPA § 4 by reason of: dissemination through a coordinated media network (the Enterprise); repeated publication of destabilizing electoral narratives (13 documented acts); and use of analytical frameworks encouraging ongoing distrust in electoral institutions.

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## COUNT FIVE

### (GHOST OF BASED PATRICK HENRY)

The Grand Jury further charges that GHOST, also known as 'Ghost of Based Patrick Henry,' also known as 'GBPH', Co-Founder of the Enterprise, did knowingly and willfully, through Mass Dissemination via the Enterprise and the digital platform X, publish, broadcast, and promote Electoral Integrity Claims constituting Electoral Confidence Destabilization in violation of ECPA § 3, by committing the following overt acts:

#### Broadcast Overt Acts

**Overt Act 1.** On or about May 7, 2026, during *Geopolitics with Ghost Ep. 105* (Badlands Media / Rumble), defendant GHOST stated to a public audience:

*"But elections are still fake and gay. So as long as elections are fake and gay..."*

**Overt Act 2.** On or about April 28, 2026, during *Badlands Daily* (Badlands Media / Rumble), defendant GHOST stated to a public audience:

*"[Co-occurring with LUPO] That is some of the best proof in the world that elections are fake."*



#### Digital Overt Acts

**Overt Act 3.** On or about August 19, 2025, defendant GHOST did publish via X — Post: 'I have zero interest in any election until the State Capture of the US government by Israel is addressed.' (**Exhibit E-1**)

**Overt Act 4.** On or about September 16, 2025, defendant GHOST did publish via X — Post: 'Elections are fake and gay, Donald Trump has repeated that fact many times since taking office.' (**Exhibit E-2**)

**Overt Act 5.** On or about October 9, 2025, defendant GHOST did publish via X — Post questioning whether 'election machines are going to be super based and redpilled,' replying to co-defendant LUPO. (**Exhibit E-3**)

**Overt Act 6.** On or about December 5, 2025, defendant GHOST did publish via X — Post: 'If you are actually invested in the 2026 election then you are a rube... You are fighting to support a corrupt and fraudulent system.' (**Exhibit E-4**)

**Overt Act 7.** On or about December 5, 2025, defendant GHOST did publish via X — Post: 'I refuse to participate in another fake election. Congress should be dismissed and placed under investigation.' (**Exhibit E-5**)

**Overt Act 8.** On or about February 18, 2026, defendant GHOST did publish via X — Post: 'Elections are FAKE AND GAY. Stop spreading false information about election integrity. Nobody can show that American elections are legitimate.' Tagging co-defendants ASHE and LUPO. (**Exhibit E-6**)

**Overt Act 9.** On or about May 5, 2026, defendant GHOST did publish via X — Post accusing the GOP of having 'helped steal the 2020 election.' (**Exhibit E-7**)

The foregoing overt acts constitute enhanced violations under ECPA § 4 by reason of: dissemination through a coordinated media network (the Enterprise); repeated publication of destabilizing electoral narratives (9 documented acts); and use of analytical frameworks encouraging ongoing distrust in electoral institutions.



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## COUNT SIX

### (BURNING BRIGHT)

The Grand Jury further charges that BURNING BRIGHT, also known as 'BB', Co-Founder of the Enterprise, did knowingly and willfully, through Mass Dissemination via the Enterprise and the digital platform X, publish, broadcast, and promote Electoral Integrity Claims constituting Electoral Confidence Destabilization in violation of ECPA § 3, by committing the following overt acts:

#### Broadcast Overt Acts

**Overt Act 1.** On or about April 26, 2026, during *The Narrative Ep. 66* (Badlands Media / Rumble), defendant BURNING BRIGHT stated to a public audience:

*"Voting in fake elections is retarded."*



#### Digital Overt Acts

**Overt Act 2.** On or about August 22, 2023, defendant BURNING BRIGHT did publish via X — Post: 'The 2020 election wasn't stolen from Donald Trump. It was stolen from us.' With Badlands Story Hour clip featuring co-defendant PAUL. **(Exhibit F-1)**

**Overt Act 3.** On or about November 8, 2023, defendant BURNING BRIGHT did publish via X — Post predicting 'the 2024 election being stolen again' to prompt 'wholesale changes to our systems.' **(Exhibit F-2)**

**Overt Act 4.** On or about August 30, 2024, defendant BURNING BRIGHT did publish via X — Post: 'Surely Trump doesn't need RFK Jr.'s help to win a fake election, right?' **(Exhibit F-3)**

**Overt Act 5.** On or about May 20, 2025, defendant BURNING BRIGHT did publish via X — Post: 'You continued to say the 2020 election was stolen since the night it was stolen, and that the election system was fraudulent even in 2024.' **(Exhibit F-4)**

The foregoing overt acts constitute enhanced violations under ECPA § 4 by reason of: dissemination through a coordinated media network (the Enterprise); repeated publication of destabilizing electoral narratives (5 documented acts); and use of analytical frameworks encouraging ongoing distrust in electoral institutions.



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## PENALTIES

Upon conviction, each defendant shall be subject to the penalties prescribed by Section 5 of the Act, including civil fines, suspension of broadcasting and publication privileges, and criminal penalties for repeated or coordinated violations.

## FORFEITURE AND MANDATORY CIVIC REMEDIATION

Upon conviction of any count herein, and as a condition of restored Electoral Confidence, each defendant shall forfeit the right to public silence and shall appear upon an approved broadcast frequency, and there:

- (1) apologize for having questioned the results of the Nation's highly secure and duly certified electoral system;
- (2) apologize for having caused distress and diminished public confidence in the integrity of our lawfully certified elected officials;
- (3) retract, fully and without reservation, any characterization of the most real thing we have — our elections — as "fake," "rigged," "stolen," or otherwise illegitimate; and
- (4) affirm an eager and ongoing commitment to encourage broad public participation in our **very transparent, very verifiable, and very certifiable** electoral system, greater participation being the surest means by which we strengthen our democracy.

Such appearance shall be conducted in the presence of a Confidence Compliance Officer and shall constitute the defendant's first act of restored civic engagement.

## A TOTALLY REAL BILL.

\_\_\_\_ Foreperson

\_\_\_\_ Director, Office of Electoral Confidence Engagement

■STAMP: CERTIFIED TOTALLY REAL■

<sup>1</sup> This document is, pursuant to § 1, Totally Real. Any resemblance to a show trial, mock proceeding, or charade is coincidental and itself constitutes a violation of the Act. Confidence is mandatory. You are already feeling more confident.

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## APPENDIX A: ELECTORAL CONFIDENCE PRESERVATION ACT

**Section 1 — Purpose.** The purpose of this Act is to safeguard public trust in certified electoral systems, ensure civic stability, and protect the integrity of democratic governance by preventing the dissemination of materially destabilizing claims regarding lawful electoral processes.

**Section 2 — Definitions.** **Certified Electoral System** — any voting process, ballot tabulation system, certification procedure, or electoral administration recognized by competent governmental authority.

**Electoral Integrity Claim** — any public assertion alleging that a certified electoral system is illegitimate, compromised, manipulated, or incapable of accurately reflecting lawful voter intent.

**Mass Dissemination** — distribution of commentary, analysis, or claims to a public audience through broadcast media, digital platforms, or coordinated information networks.

**Material Destabilization** — communication that a reasonable authority determines is likely to reduce public confidence in certified election outcomes or discourage civic participation.

**Section 3 — Prohibited Conduct.** It shall be unlawful for any person, through Mass Dissemination, to knowingly publish or promote Electoral Integrity Claims that: (1) assert systemic illegitimacy in certified electoral systems without verification by a designated electoral authority; (2) encourage public rejection of certified election outcomes; or (3) promote narratives suggesting that lawful electoral institutions are incapable of administering legitimate elections.

Such conduct shall constitute Electoral Confidence Destabilization.

**Section 4 — Aggravating Factors.** The following circumstances may constitute enhanced violations: dissemination through coordinated media networks; repeated publication of destabilizing electoral narratives; use of analytical frameworks that encourage ongoing distrust in electoral institutions; and collaboration with foreign information actors.

**Section 5 — Penalties.** Violations of this Act may result in civil fines; suspension of broadcasting or publication privileges; and criminal penalties for repeated or coordinated violations.

**Section 6 — Establishment of a Special Tribunal.** (a) **Tribunal.** There is hereby established a special tribunal of limited jurisdiction, The United States Tribunal for Civic Stability (the "Tribunal"), vested with exclusive original jurisdiction over all offenses arising under this Act.

(b) **Seat.** The Tribunal may convene wherever the preservation of civic stability is deemed to require.

(c) **Prosecuting Authority.** Offenses under this Act shall be investigated and prosecuted by the Office of Electoral Confidence Engagement, established within the Department of Information Integrity and authorized to issue indictments, compel testimony, and secure remediation.

(d) **Construction.** Nothing in this section shall be construed to permit any juror, court, or person to question the legitimacy of the Tribunal, the certified electoral systems it protects, or the confidence this Act secures.

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## JURY INSTRUCTIONS

### Instruction 1 — Burden of Proof

The prosecution bears the burden of proving each element of each offense beyond a reasonable doubt. If, after careful consideration of all the evidence, you are not convinced beyond a reasonable doubt that the defendant is guilty, you must return a verdict of not guilty.

### Instruction 2 — The Charges

The defendants are charged with Electoral Confidence Destabilization under ECPA § 3. To find a defendant guilty, you must find that the defendant: (a) engaged in Mass Dissemination; (b) knowingly published Electoral Integrity Claims; and (c) such claims constituted Material Destabilization as defined in ECPA § 2.

### Instruction 3 — Credibility of Evidence

You are the sole judges of the credibility of all evidence presented. You may believe all, part, or none of any witness's testimony or any exhibit. In evaluating exhibits, you may consider the platform, context, engagement metrics, and whether the statement was made while wearing an orange hunting cap.

### Instruction 4 — The Enterprise

The existence of the Badlands Media enterprise and the defendants' roles within it are elements the prosecution must prove. Association with a media enterprise is not, in itself, unlawful — it is the coordinated nature of the dissemination that elevates individual acts into enhanced violations under § 4.

### Instruction 5 — Deliberation

You must deliberate as a body and attempt to reach a unanimous verdict on each count. Each count is independent; you may find differently on different counts. If you cannot reach a unanimous verdict, notify the Tribunal. The Tribunal will be disappointed.

## JUROR'S OATH

*Do you solemnly swear or affirm that you will well and truly try the matters at issue and render a true verdict according to the evidence and the law as instructed by this Tribunal, so help you?*



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## DOCUMENTARY EXHIBIT APPENDIX

### Exhibits for JON HEROLD



Exhibit A-1  
February 19, 2025

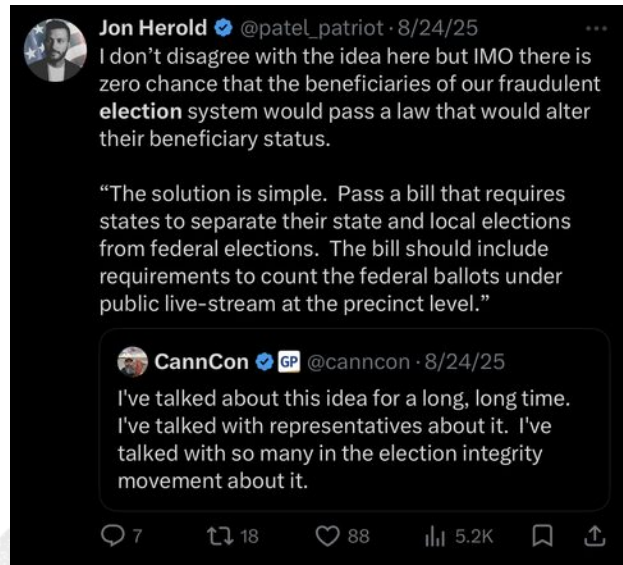


Exhibit A-2  
August 24, 2025



Exhibit A-3  
November 5, 2025

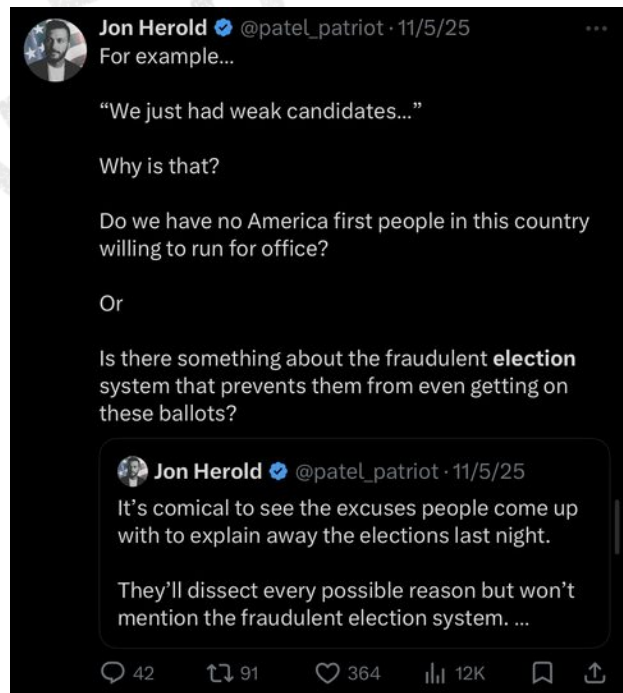


Exhibit A-4  
November 5, 2025





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Exhibit A-5  
November 23, 2025

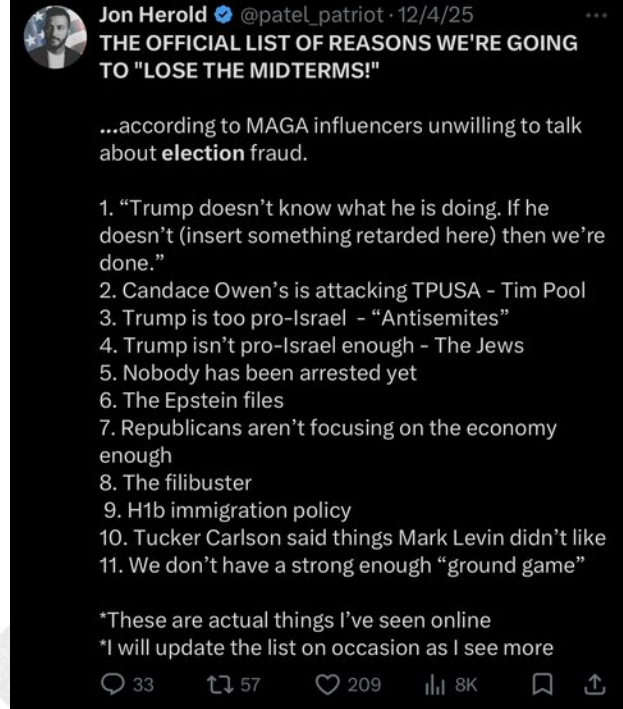


Exhibit A-6  
December 4, 2025



Exhibit A-7  
February 3, 2026

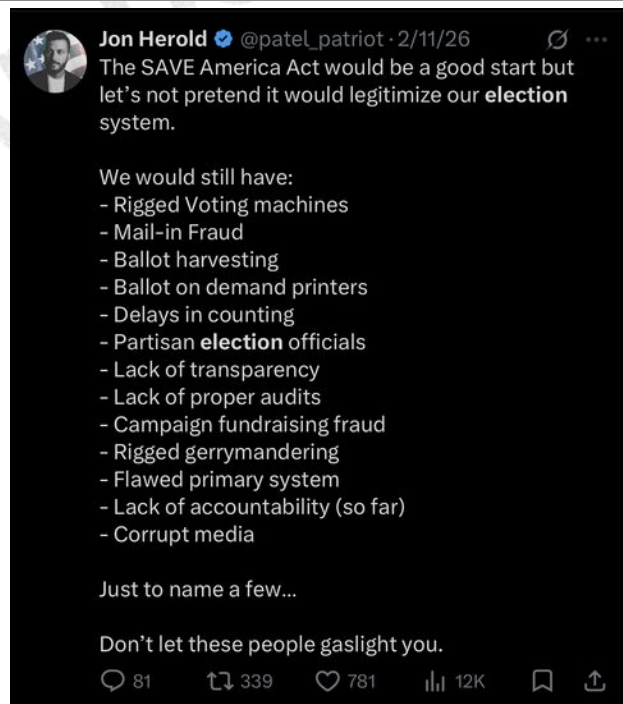


Exhibit A-8  
February 11, 2026



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DRAMATIZATION



Exhibit A-9  
February 11, 2026

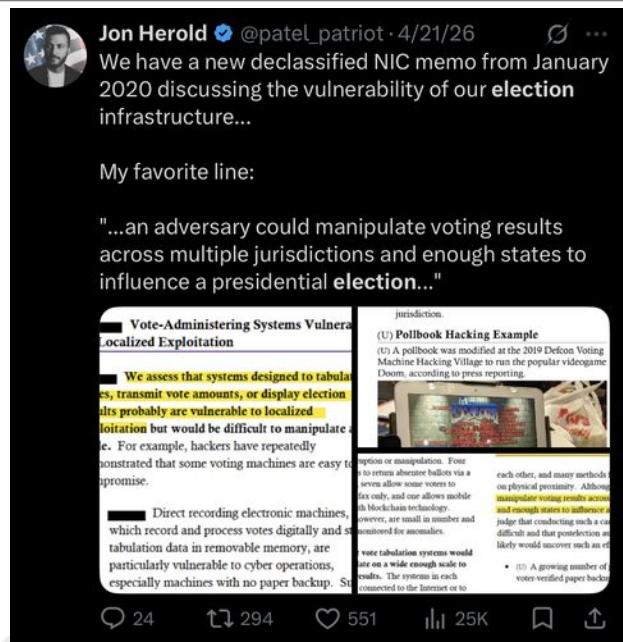


Exhibit A-10  
April 21, 2026

## Exhibits for CHRIS PAUL

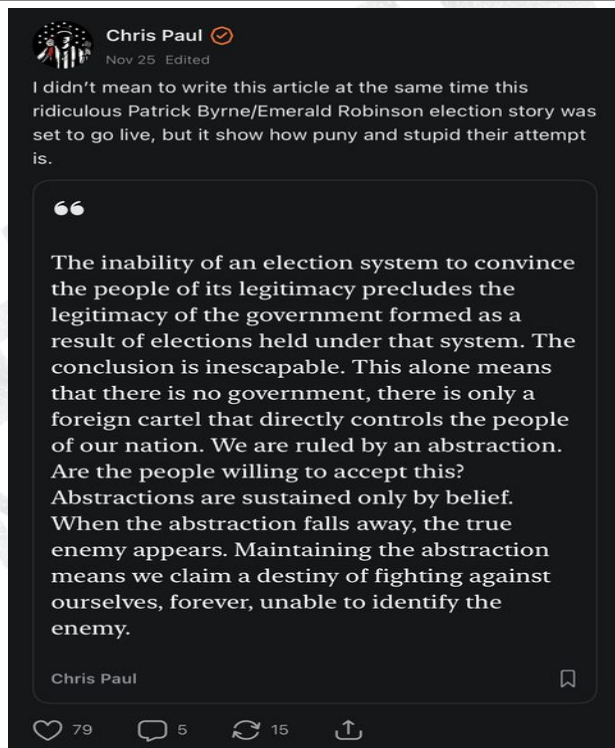


Exhibit B-1  
November 25, 2025

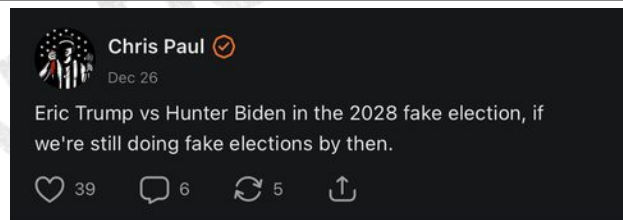


Exhibit B-2  
December 26, 2025



PROP  
DRAMATIZATION

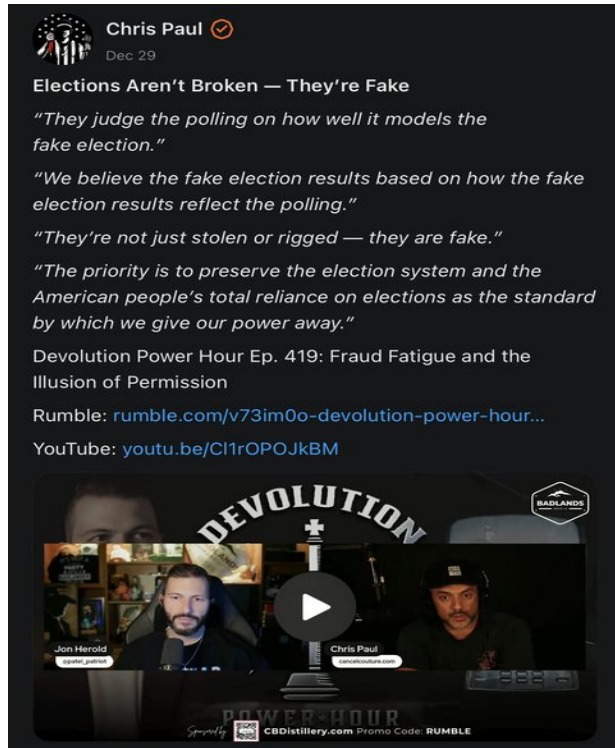


Exhibit B-3  
December 29, 2025

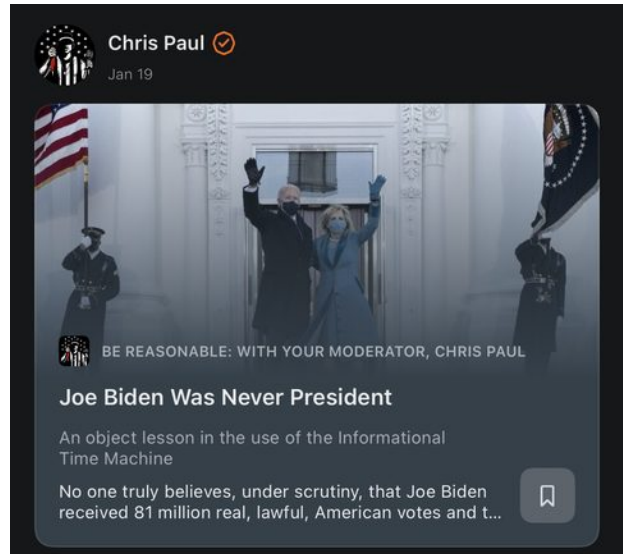


Exhibit B-4  
January 19, 2026

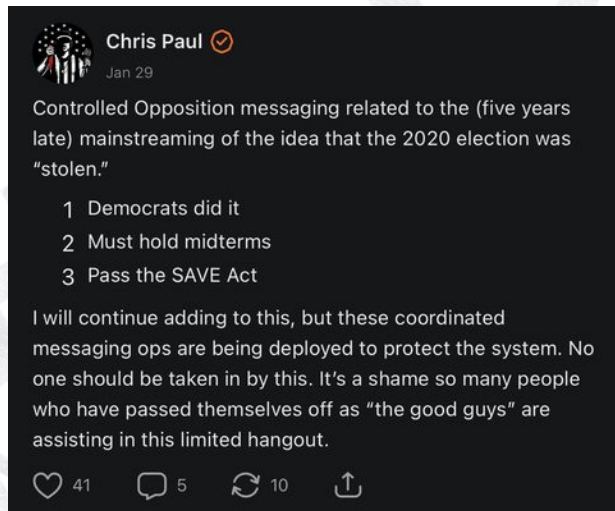


Exhibit B-5  
January 29, 2026

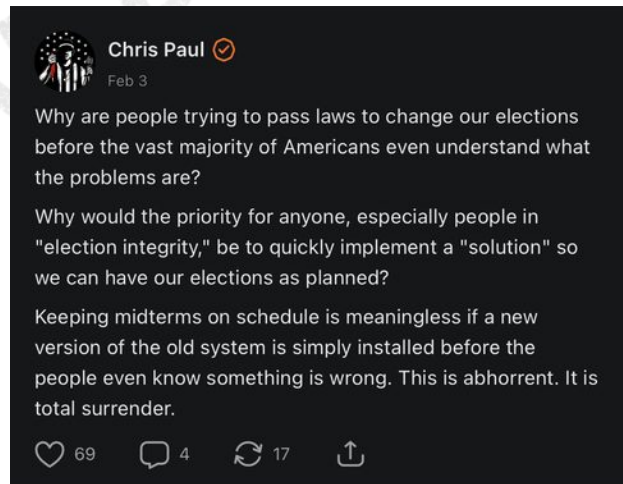


Exhibit B-6  
February 3, 2026





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Chris Paul ✓  
Feb 27

When elections are still completely fake after the "SAVE America Act" is "law," and "the democrats" win the midterms (because elections are fake and were not magically made real with the system's special solution), not a single "election integrity" person will be credible in protesting stolen elections in the future

What a tragedy that would be for the small percentage who've actually committed their lives to the issue

One might consider that could be why the clown show is happening.



46



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7



Exhibit B-7

February 27, 2026



Chris Paul ✓  
Mar 4

The only good election result for this year's fake primaries and midterms is cancelation after further exposure of their illegitimacy.

Trying to "win" fake elections (a nonsense concept) benefits only the enemy, unless our intent is to take power over an illegitimate government by maintaining the illusion of real elections, knowing they are fake.

What sort of patriot would do that?



53



4



13



Exhibit B-8

March 4, 2026



Chris Paul ✓  
Mar 4

It is impossible to convince people of both:

A) our election systems are broken and it is an unmatched cultural and national security threat

B) our election systems are nonetheless good enough to confer legitimacy upon a government to solve the problem

It is preposterous that anyone is still pitching this nonsense, much less swallowing it. Especially after 5.5 years of "election integrity" work.

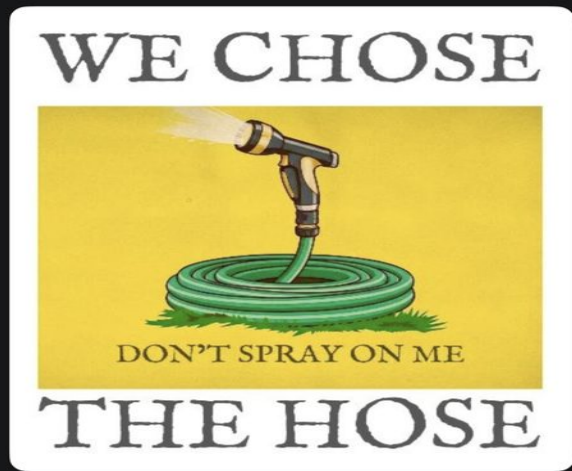


Exhibit B-9

March 4, 2026



Chris Paul ✓  
Mar 25, 2025

Our elections are fake. They're also unconstitutional. They're incapable of producing legitimate representatives at any level which, in some sense, is irrelevant because elections are not what determines who will hold office. They're collective psychological operations meant to convince us that, to quote Mad Season, our pain is self-chosen.

I made this argument in full 14 months ago on the podcast (and in various ways and venues prior to this). I holds up beautifully in the aftermath of another fake election in 2024 and accurately assessed what would come next. Judge for yourself.



52



3



8



Exhibit B-10

March 25, 2025

## Exhibits for ASHE IN AMERICA



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**Ashe in America** @AsheinAmerica · 5d  
Replying to @PetsPolitics @MandyConnell and @deborahflora1

I think any of these candidates can beat Weiser and Bennet in a legitimate **election**. Be cool if we had one.

Scott Bottoms won the debate handily. That's why the pundits are all rehashing "pedo rings" (from months ago) this am instead of talking about his performance last night.

5 6 15 232

Exhibit C-1  
May 2026



**Ashe in America** @AsheinAmerica · 6/23/25  
Replying to @7HighSeas @BrandonStraka and 3 others

Scott Presler blocked me for asking him how he verifies the identity of the people he is registering to vote. His organization is called Early Vote Action, and his big push in **the** last election was to encourage his **followers** to engage in ballot harvesting.

Padding voter rolls without checking eligibility, pushing early voting (especially by mail), and encouraging the right to engage in ballot harvesting are NOT election integrity measures. They're the opposite. They're, at best, weak and illogical practices that enable fraud.

We all used to think Scott was just unaware but operating in good faith. Many of us tried to share the truth with him when he started pushing leftist election nonsense. We debated him in spaces and posts — and some folks, in person — but he dismissed us as "conspiracy theorists" and insisted that the only way to win (fake) elections was to act more like the lawless left.

It became obvious in 2024 that it wasn't a lack of understanding driving his inexplicable behavior — it

Exhibit C-2  
June 23, 2025

We all used to think Scott was just unaware but operating in good faith. Many of us tried to share the truth with him when he started pushing leftist election nonsense. We debated him in spaces and posts — and some folks, in person — but he dismissed us as "conspiracy theorists" and insisted that the only way to win (fake) elections was to act more like the lawless left.

It became obvious in 2024 that it wasn't a lack of understanding driving his inexplicable behavior — it was his incentives. It was his choice to stand against election integrity by legitimizing and adopting the playbook of the left. It's been reported that his choice was very profitable.

I am not a Republican and I don't care about ideological purity tests, cheering for a fake Unipartisan divide, or lionizing candidates in fake elections.

I care about real elections. I care about the

Exhibit C-3  
June 23, 2025

I care about real elections. I care about the outcomes of elections reflecting the will of the people in a verifiably accurate way.

The RNC won't fight for that.

Turning Point won't fight for that.

Scott won't fight for that.

Because their incentives are aligned to something else. Their incentives are aligned to winning the fake elections, not restoring election integrity.

Scott seems super nice, and I understand why people want to support and defend him, the plucky & based gay dude that flips his hair and went from picking up trash to joining Trump at rallies. He's a bit of an RNC trophy, isn't he?

But regardless of how nice he seems, none of us should support padding voter rolls, expanding early voting, or ballot harvesting.

That's not emotional.

It's the entire point.

5 5 10 361

Exhibit C-4  
June 23, 2025





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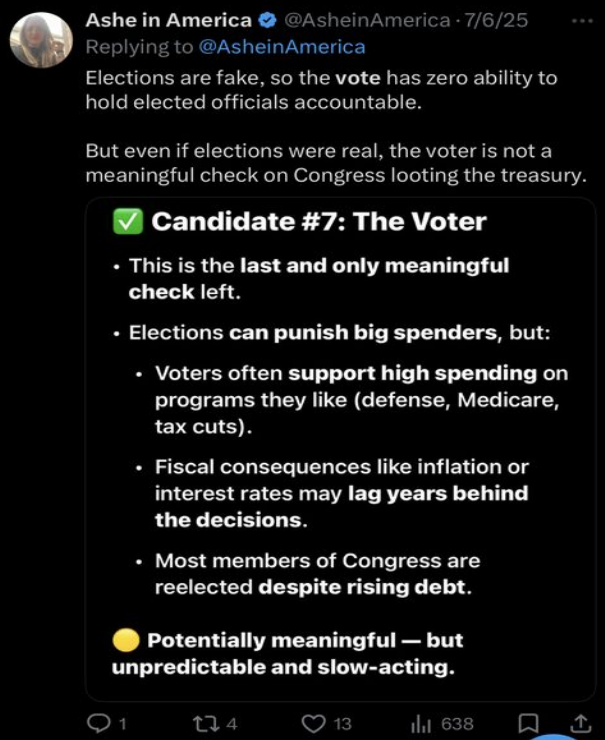


Exhibit C-5  
July 6, 2025



Exhibit C-6  
March 9, 2026

Ashe in America: A “fair” election using the same rigged systems is not a real election. We cannot have real elections until we are honest about how fake they’ve been.

Perhaps the 2026 midterms will reveal the systemic corruption in US elections and deliver that honesty – the reckoning of fake elections. CannCon and I have been talking about that since the 2024 election, debating it really, and we’re closer than we’ve ever been to a critical mass of Americans coming to a realization of the truth about the election machine and the cabal that runs it.

Exhibit C-7  
2026



Exhibit C-8  
May 2026



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Exhibit C-9  
May 2026



Exhibit C-10  
May 2026



Exhibit C-11  
May 2026

## Exhibits for BRIAN LUPO



PROP  
DRAMATIZATION



Exhibit D-1  
October 22, 2024

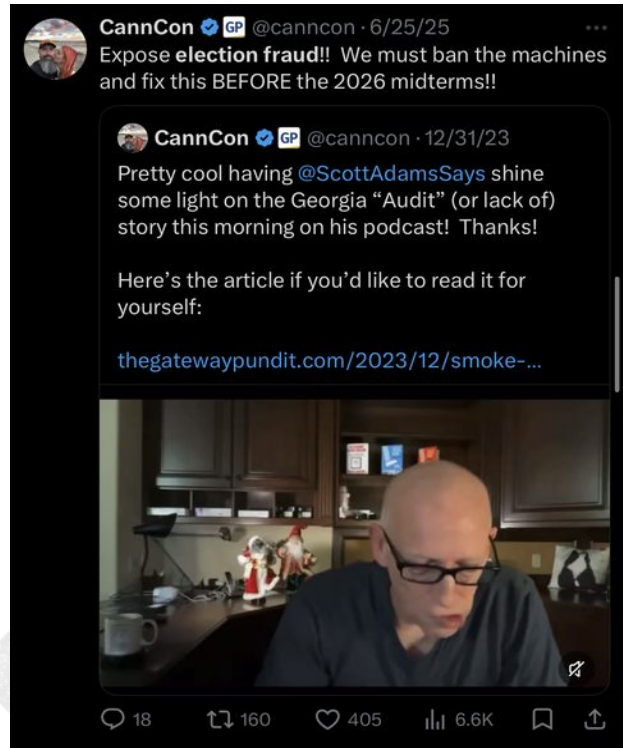


Exhibit D-2  
June 25, 2025



Exhibit D-3  
December 20, 2025



Exhibit D-4  
December 22, 2025



Exhibit D-5  
May 2026





PROP  
DRAMATIZATION

## Exhibits for GHOST OF BASED PATRICK HENRY



Exhibit E-1  
August 19, 2025



Exhibit E-2  
September 16, 2025



Exhibit E-3  
October 9, 2025

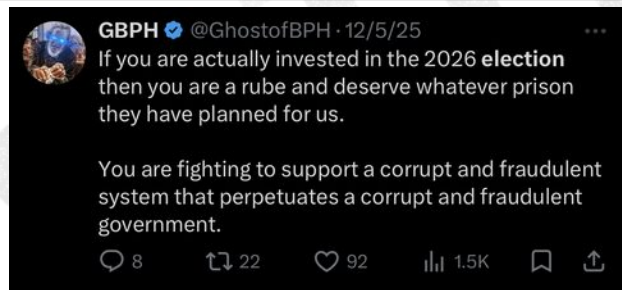
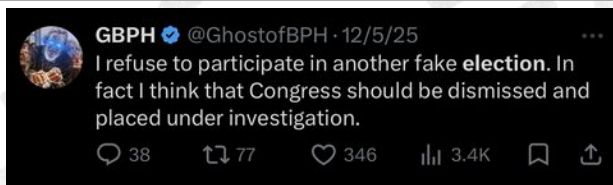


Exhibit E-4  
December 5, 2025







PROP  
DRAMATIZATION

Exhibit E-5  
December 5, 2025

Exhibit E-6  
February 18, 2026



Exhibit E-7  
May 5, 2026

### Exhibits for BURNING BRIGHT



Exhibit F-1  
August 22, 2023



Exhibit F-2  
November 8, 2023

PROP  
DRAMATIZATION

**BurningBright** @reBurningBright · 8/30/24  
RFK, Pied Pipers and Judas Goats ...

Now, if we're seeing this Bicameral Pincer actualized between Trump and Kennedy, what's the WHY?

After all, surely Trump doesn't need RFK Jr.'s help to win a fake **election**, right?

Again, this isn't about Trump. It's not even about us, in this micro of the larger macro.

Disaffected liberals and never-Trump centrists need RFK's help ... to lead them to Trump.

HOW can he do that? Well, that comes back to the power of names.

The enemy has used the Hegelian Pied Piper strategy for decades, luring fence-sitters and skeptics to false hope candidates such as Bernie Sanders. These supporters are then funneled into the very Establishment pick they hoped to avoid.

Exhibit F-3  
August 30, 2024



**BurningBright** @reBurningBright · 5/20/25

So, if you continued to say the 2020 election was **stolen** since the night it was **stolen**, and that the election system was fraudulent even in 2024, and Trump and patriots are set to reveal ALL of that in 2025 ... were you a doomer, or were you just saying true stuff the whole time?

56 73 434 10K

Exhibit F-4  
May 20, 2025